

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

CR No. 731 of 2019

Syed Ali Manzar Zaidi etc
vs
Syed Nafees etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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18.06.2019 Malik Muzaffar Qadir Tameem, Advocate.

Through this revision petition, the petitioners have called in question order dated 14.06.2019 passed by Additional District Judge, Multan whereby through an interim order while admitting appeal for regular hearing against order of trial court dated 03.06.2019, whereby the application under Order XXXIX Rules 1 and 2 CPC filed by the petitioners in a suit for declaration, permanent and mandatory injunctions was dismissed, the court issued notices to the respondents and operation of the impugned order dated 03.06.2019 passed by the learned trial court has been suspended. The operative part of the impugned order is reproduced below:-

“As grounds raised in the instant appeal require probe and consideration, therefore, appeal in hand is admitted for regular hearing. Respondents No. 1 to 3 and 11 be summoned through notices subject to deposit of process fee alongwith registered post envelope AD within

three days for 29.06.2019. Operation of the impugned order is hereby suspended till decision of this appeal.”

2. Bare perusal of the afore referred order shows that nothing has been finally decided that amounts to a challengeable decision and only the operation of the impugned order dated 03.06.2019 has been suspended whereby application for grant of temporary injunction filed by the respondents had been dismissed. Suspending the order of dismissal of an application without passing further orders granting any relief or restoring relief that was granted as an ad-interim relief by the trial court at a stage before the said application was dismissed does not tantamount to automatically revive any relief that may have been granted at ad-interim stage as the same had merged in the final order, therefore, there is no finally settled matter to be agitated before and determined by this Court in the civil revision, which requires the impugned decision to be a “*case decided*” before the revision petition could be entertained against the same. Reliance in this regard may be placed on the judgments reported as **Mian Muhammad Luqman and 5 others vs. Farida Khanam and another** (1994 SCMR 1991), **Nestle Milkpak Limited vs. Classic Needs Pakistan (Pvt)Ltd and 3 others** (2006 SCMR 21) and **Abdul**

Razzaq and others vs. Muhammad Ajmal Khan (PLD 2018 Lahore 491).

3. It would be appropriate that petitioners may wait for any final order or interim order to be passed by the said court which falls within the purview of “case decided” before calling the same in question through appropriate proceedings. However, the petitioners are at liberty to file appropriate application to agitate their grievance, if any, before the appellate court.

4. For what has been discussed above this revision petition is premature and is accordingly ***dismissed***.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *

Approved for reporting.